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AS INTRODUCED IN LOK SABHA ON

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Bill No. 89 of 1966.

THE CONSTITUTION (TWENTY-THIRD AMENDMENT)
BILL, 1966

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further to amend the Constitution of India.

BE it enacted by Parliament in the Seventeenth Year of the
Republic of India as follows:—

1. This Act may be called the Constitution (Twenty-third
Amendment) Act, 1966.

5 2. After article 233 of the Constitution, the following article shall
be inserted, namely:—

“233A. Notwithstanding any judgment, decree or order of
any court,—

10 (a) (i) no appointment of any person already in the
judicial service of a State or of any person who has been for
not less than seven years an advocate or a pleader, to be a
district judge in that State, and

Insert on of
new article
233A.

Validation of
appoint-
ments of,
and
judgments,
etc., delivered
by, certain
district
judges.

(ii) no posting, promotion or transfer of any such person as a district judge,

made at any time before the commencement of the Constitution (Twenty-third Amendment) Act, 1966, otherwise than in accordance with the provisions of article 233, or article 235 shall be deemed to be illegal or void or ever to have become illegal or void by reason only of the fact that such appointment, posting, promotion or transfer was not made in accordance with the said provisions;

(b) no jurisdiction exercised, no judgment, decree, sentence or order passed or made, and no other act or proceeding done or taken, before the commencement of the Constitution (Twenty-third Amendment) Act, 1966 by, or before, any person appointed, posted, promoted or transferred as a district judge in any State otherwise than in accordance with the provisions of article 233 or article 235 shall be deemed to be illegal or invalid or ever to have become illegal or invalid by reason only of the fact that such appointment, posting, promotion or transfer was not made in accordance with the said provisions."

STATEMENT OF OBJECTS AND REASONS

Appointments of district judges in Uttar Pradesh and a few other States have been rendered invalid and illegal by a recent judgment of the Supreme Court on the ground that such appointments were not made in accordance with the provisions of article 233 of the Constitution. In another judgment, the Supreme Court has held that the power of posting of a district judge under article 233 does not include the power of transfer of such judge from one station to another and that the power of transfer of a district judge is vested in the High Court under article 235 of the Constitution. As a result of these judgments a serious situation has arisen because doubt has been thrown on the validity of the judgments, decrees, orders and sentences passed or made by these district judges and a number of writ petitions and other cases have already been filed challenging their validity. The functioning of the district courts in Uttar Pradesh has practically come to a standstill. It is, therefore, urgently necessary to validate the judgments, decrees, orders and sentences passed or made heretofore by all such district judges in those States and also to validate the appointment, posting, promotion and transfer of such district judges barring those few who were not eligible for appointment under article 233.

2. The Bill seeks to give effect to the above proposals.

Y. B. CHAVAN.

NEW DELHI:
The 20th November, 1960.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

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CHAPTER VI.—SUBORDINATE COURTS

Appoint-
ment of
district
judges.

233. (1) Appointments of persons to be, and the posting and promotion of, district judges in any State shall be made by the Governor of the State in consultation with the High Court exercising jurisdiction in relation to such State.

(2) A person not already in the service of the Union or of the State shall only be eligible to be appointed a district judge if he has been for not less than seven years an advocate or a pleader and is recommended by the High Court for appointment.

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Control over
subordinate
courts.

235. The control over district courts and courts subordinate thereto including the posting and promotion of, and the grant of leave to, persons belonging to the judicial service of a State and holding any post inferior to the post of district judge shall be vested in the High Court, but nothing in this article shall be construed as taking away from any such person any right of appeal which he may have under the law regulating the conditions of his service or as authorising the High Court to deal with him otherwise than in accordance with the conditions of his service prescribed under such law.

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(*Shri Y. B. Chavan,*
Minister of Home Affairs.)